

mandatory relief provision was added to section 473.) While some of the cases cited by Plaintiffs do pre-date that timeframe, the above cases do not.

Plaintiffs' Opposition includes discussions related to the discretionary relief prong of section 473. As discussed above, RW Williams did not move under that provision (which appears to be confirmed by the failure to address those arguments in the Reply), so the Court does not address those arguments here.

Based on the above, Defendant RW Williams' Motion is **denied**.

4. 9:00 AM CASE NUMBER: C23-03249

CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU

***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**

FILED BY: POLIKER, AHARON

TENTATIVE RULING:

The unopposed motion is continued on the court's motion to March 27, 2026 at 9:00 a.m., Department 32, for proof of service of a Notice of Motion complying with CCP 1010. Hearing on this motion was previously continued from October 3, 2025 to January 3, 2026 for lack of notice.

On November 14, 2025, Plaintiff/Cross-Defendant Aharon Poliker filed a document purporting to be notice of motion. The pleading was styled, "Plaintiff / Cross-Defendant AHARON POLIKER'S NOTICE IN SUPPORT OF THEIR MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT." The face of the notice contained the date and time and department where the motion would be heard. However, the notice failed to state "the grounds upon which the motion would be made and the papers, if any, upon which it is to be based," as required by CCP 1010. Instead of a code compliant notice, the document erroneously attached a copy of the court's tentative ruling from a hearing held on January 6, 2025.

Given that over six months have passed since the original filing of papers in support of this motion, the court orders the moving party to re-serve all parties with the motion and the papers upon which the motion is based.

5. 9:00 AM CASE NUMBER: C24-03330

CASE NAME: JOHN WISDOM VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Order stipulating to SAC filed 1/15/26.